

NO REDRESS? Women in hijab outside the gates of the Karnataka HC in Bengaluru

MANJUNATH KIRAN/AFP

HIJAB CONTROVERSY

THE CLOAK OF JUSTICE

By Sunil Menon

The hijab case of Karnataka has moved, almost inevitably, into a higher orbit of national reckoning. The raft of issues raised by the case—arising out of an Udupi college's refusal to allow girls to wear the Islamic headscarf on campus—will now be subject to the Supreme Court's judicial wisdom. A bunch of appeals have landed before it, and more may be on the way. What they are challenging is the Karnataka High Court's March 15 verdict that upheld what is fated to be known, in common understanding, as 'the hijab ban'.

The three-judge HC bench, while framing the issue, had chosen to accord centrality to the question of whether the hijab was essential to the practice of Islam. This scaled up a practical question—one that could have been framed tightly, and tackled, at the level of a conflict between college rules and individual rights—to a more fundamental, risky realm. In the end, the court ruled that Islamic tenets didn't mandate the hijab.

The verdict also privileged the idea of the uniform, saying schools and pre-university colleges (PUCs, the equivalent of Plus 2) are "qualified public spaces" where the idea of discipline is paramount and must prevail upon individual choice. The relevant 1983 Act of Karnataka prescribed no uniform, and only a Government Order (G.O.) of February 5, 2022, had brought in, even as the controversy raged, an executive cover for uniforms prescribed by individual colleges. The court finally validated that G.O. too, saying it was not violative of the principle of equality, nor discriminatory in nature.

Commentators say the verdict could set off of "an unmanageable deluge" of copycat court cases against practices in other religions: the scope for mischief is not small

Strictly delimited to its actual scope, the verdict applies only to Karnataka's schools and PUCs. Not to offices, malls, streets, any other public space—or, indeed, anywhere else in India. But because of the general principles it lays down, its tenor can be heard everywhere. Also, the issue involves a whole series of constitutional rights. Take